

		forfeiture was published once a week, for three successive weeks in the Orange County Reporter, as the property was seized in Orange County. All notices meet the statutory requirements set out in Health and Safety Code section 11488.4(f). No claim has been filed by either real party in interest Kevin Garcia or real party in interest Irving Garcia. Petitioner offers two declarations in support of the motion from investigators with the Orange County Sheriff's Department who conducted the search of the property that resulted in the seizure and interviewed the two real parties in interest. Based on the uncontroverted evidence, the court finds Petitioner has established a prima facie case in support of the petition for forfeiture, pursuant to Health and Safety Code section 11488.4(k) and 11488.5(b)(1). The motion is GRANTED, and default judgment is entered, distributing the property as set forth in Health and Safety Code section 11489. Petitioner is ordered to give notice and to submit a proposed judgment or order.
12.	The Cadle Company v. Frear <i>2025-01452135</i>	The order to show cause hearing on the application for order for sale of dwelling is CONTINUED TO MAY 29, 2025, AT 2:00 P.M., IN DEPARTMENT C23, at the joint request of the parties.
13.	In re 12892 Lampson Ave., Garden Grove, CA 92840 <i>2024-01410035</i>	Before the court are two claims for surplus funds. The first is a motion for claim of surplus funds filed by Anthony Cain and Kitty Ho Cain (collectively, Cains). As set forth below, the Cains' motion is DENIED. The second is a motion for claim of surplus funds filed by Trung Van Ho and Huong-Duong Ho (collectively, Hos). The Hos' motion is GRANTED as set forth below. On March 6, 2025, the court granted the unopposed petition by petitioner National Default Servicing Corporation (National) to deposit surplus funds in the amount of \$472,799.24 resulting from the December 11, 2023 trustee's sale (Trustee's Sale) of the real property located at 12892 Lampson Avenue, Garden Grove, California 92840 (Property). On March 10, 2025, \$472,799.24 in surplus funds were deposited by Tiffany & Bosco, P.A. "Within 90 days after deposit with the clerk, the court shall consider all claims filed at least 15 days

before the date on which the hearing is scheduled by the court, the clerk shall serve written notice of the hearing by first-class mail on all claimants identified in the trustee's declaration at the addresses specified therein The court shall distribute the deposited funds to any and all claimants entitled thereto." (Civ. Code, § 2924j(d).)

On March 11, 2025, the clerk gave notice pursuant to Civil Code Section 2924j(d) by mail to all potential claimants identified by Petitioner as reflected on the proof of service for the amended petition at attachment 13. The notice explained all claims relating to the surplus funds must be filed with the court at least 15 days prior to today's hearing. The only claims received are those by the Cains and by the Hos.

The Cains' Motion

The Cains filed their motion claiming the surplus funds on August 30, 2024. Their motion was initially set for hearing on December 5, 2024, and then continued to March 6, 2025, and again continued to April 17, 2025. In their motion, the Cains represent they hold a power of attorney for the Hos, the owners of the Property before the Trustee's Sale, and they therefore are entitled to the surplus funds. The Cains, however, are not filing the claim on behalf of the Hos as their attorneys-in-fact, but instead are making a claim for their own benefit. The Cains have not shown they are entitled to the surplus funds under Code of Civil Procedure §2924k(a). Accordingly, their motion for surplus funds is **DENIED**.

The Hos' Motion

In their motion, the Hos assert they "are entitled to the surplus funds by virtue of our interest in the property as the trustors of the subject property when the trustee's sale took place." (Hos' Decl. at ¶9.)

Civil Code section 2924j(d) requires the court to "distribute the deposited funds to any and all claimants entitled thereto." Civil Code section 2924k requires the distribution of the funds be made in the following order of priority: (1) To the costs and expenses of exercising the power of

		sale and of sale, including the payment of the trustee's fees and attorney's fees permitted pursuant to subdivision (b) of Section 2924d and subdivision (b) of this section; (2) To the payment of the obligations secured by the deed of trust or mortgage which is the subject of the trustee's sale; (3) To satisfy the outstanding balance of obligations secured by any junior liens or encumbrances in the order of their priority; (4) <u>To the trustor or the trustor's successor in interest.</u> According to Petitioner, the costs and expenses of the trustee sale have been paid and the mortgage was paid off. There do not appear to be any other liens or encumbrances on the property. As the court has not received any other valid claims for the surplus funds, the motion by the Hos for the \$472,799.24 in surplus funds which were deposited by Tiffany & Bosco, P.A. is GRANTED. Although the Hos have asked the clerk to be directed to issue a check payable to their attorney for the amount of the surplus funds, Civil Code §2924k(a)(4) requires the surplus funds be distributed "to the trustor or the trustor's successor in interest." The Hos' attorney, CDLG, PC, is neither the trustor nor successor to the trustor. The clerk therefore is ordered to distribute the surplus funds in the amount of \$472,799.24 by check payable to Trung Van Ho and Huong-Duong Ho, and sent to CDLG, PC, 2973 Harbor Blvd., Suite 594, Costa Mesa, California 92626-3912. The Hos are ordered to give notice and submit a proposed order.
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